

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: May 15, 2026

1	CAS Properties, LLC vs. Nokomis Research Inc. 2024-01449138	Motion to Be Relieved as Counsel of Record The motion of attorneys Derek A. Newman and Derek Linke of Newman LLP to withdraw as attorney of record for Plaintiff CAS Properties, LLC is CONTINUED to June 26, 2026 at 9 AM. Service of the moving papers was completed by electronic mail, however, Mr. Newman's declaration only confirms confirmation of the
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		client's last known address. The moving papers should have been served on the client at the last known confirmed address. (Code Civ. Proc. § 284, CRC 3.1362.) Within 5 days of this Order, moving attorneys are to re-serve the moving papers by mail, overnight mail or personal service at the client's last known address. Moving Party shall give notice.
2	Lee vs. Mercedes-Benz USA, LLC 2023-01316486	1. Motion to Compel Production 2. Motion – Other (To Compel Deposition of Person Most Knowledgeable for Mercedes-Benz USA, LLC) Plaintiff John Lee's Motion to Compel Deposition Attendance with Production of Documents is DENIED as Moot. The prior hearing on this motion was continued to allow the parties to engage in a good faith meet and confer. On April 21, 2026, the parties filed a Joint Status Report stating that the PMK deposition was to go forward on April 23, 2026. Plaintiff's counsel represented they would inform the court no later than April 24, 2026, whether the motion is withdrawn or whether the hearing should proceed as scheduled. Plaintiff did not file any such notice with the court. Therefore, the court assumes the motion has been rendered moot. Accordingly, the motion is DENIED as Moot. Plaintiff's request for sanctions is also DENIED.
3	Jack in the Box Inc. vs. Altametrics, LLC 2026-01543053	Motion to Seal

		Plaintiff Jack in the Box Inc.'s motion to seal records is DENIED. Plaintiff has failed to provide a "specific enumeration of the facts sought to be withheld and specific reasons for withholding them." (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.) " '[S]pecificity is essential. [Citation.] Broad allegations of harm, bereft of specific examples or articulated reasoning, are insufficient.' [Citation.]" (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273,1282; McNair v. National Collegiate Athletic Association (2015) 234 Cal.App.4th 25, 35.) Instead, plaintiff generally requests that the court seal "certain confidential information" from six documents filed on 2/2/26, that purportedly "contain references to confidential competitive financial information...." (ROA No. 38-Mtn. Memo. P&As at p. 3; ROA No. 30-Tyrell Decl. ¶ 3) The subject documents total almost 90 pages and it is not the court's role to compare and contrast each page to determine what information is at issue here. Furthermore, even a cursory comparison of the redacted and unredacted versions of the documents shows that the subject information does not consist of just "confidential competition financial information" (Tyrell Decl. ¶ 3), but includes nonfinancial, nonproprietary, and/or mundane information such as, inter alia, the definitions of "Customer Franchisee" and "Subsidiary"; references to the parties' Master Consulting Services Agreement, the existence of which is part of the public record; a force majeure clause; and common, run-of-the mill remedies, limitation of liability, and indemnification clauses. (Compare ROA No. 21, with ROA Nos. 39, 43.) Plaintiff has also failed to state "specific reasons for withholding [the subject information]" or make " 'a specific showing of serious injury.' " (H.B. Fuller, supra, 151 Cal.App.4th at p. 894 [burden]; Universal,
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		supra, 110 Cal.App.4th at pp. 1281-1282 [moving party must make “ ‘a specific showing of serious injury’ ”]; Cal. Rules of Court, rule 2.551(b)(1) [motion to seal “must be accompanied by ... a declaration containing facts sufficient to justify the sealing”]; see ROA No. 30–Tyrell Decl., in passim.) Plaintiff’s counsel merely concludes that the portions of the documents that it seeks to seal “contain references to confidential competitive financial information of JIB and [Altametrics]” without any explanation or foundation, other than the fact that the parties have agreed to keep the terms of one of the agreements confidential. (ROA No. 30–Tyrell Decl. ¶ 3.) There is no overriding interest based on a contractual agreement for confidentiality. There is no overriding interest based on a contractual agreement for confidentiality. (McNair, supra, 234 Cal.App.4th at pp. 35-36.) Plaintiff shall give notice.
5	Vanetik vs. Hall 2022-01294260	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants Brian T. Hall and Michele A. Hall’s demurrer to third amended complaint is OVERRULED. Defendants shall answer the third amended complaint (TAC) within 20 days. The fourth cause of action for false light is not merely duplicative of the first cause of action for defamation. (See Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1264 [false light]; Bui v. Ngo (2024) 101 Cal.App.5th 1061, 1072 [defamation]; see also Fellows v. National Enquirer, Inc. (1986) 42 Cal.3d 234, 239 [“Although it is not necessary that the plaintiff be defamed, publicity placing one in a highly offensive false light will in most cases be defamatory as well.”].)

	To be sure, the two claims share substantial overlap. (See TAC ¶ 68.) However, the fourth cause of action for false light is also based on defendants' conduct in (1) creating a "parody" social media account using plaintiff's name ("@ParodyYuri"), where defendants posted a photo of sexually suggestive figures where the account holder's profile photo goes ("parodying" plaintiff), depicting plaintiff in a false light; (2) creating social media accounts under multiple aliases to post comments and create fake discussions regarding plaintiff, so as to make it appear as if many people have the same/similar defamatory statements to say about him; and (3) then apparently collecting screenshots/images/photos of these social media posts and republishing them on a purported "parody" website using plaintiff's name ("https://yuri-vanetik.com"), further solidifying that image. (See TAC ¶¶ 16, 22, Ex. 6; see also id. ¶¶ 17 [name of parody website], 69-70 [false light claim based on all of the alleged conduct and statements considered together].) These facts show defendants engaged in conduct that placed plaintiff in a false light by, inter alia, manufacturing the illusion of a public consensus in and/or the prevalence of their defamatory assertions, creating a false impression of social validation or widespread public opinion based on the opinions of just two individuals. This alleges conduct sufficient to support a false light claim that is not covered by the defamation claim. As such, it cannot be said that the two causes of action are duplicative. (See <i>Rodrigues v. Campbell Industries</i> (1978) 87 Cal.App.3d 494, 501 [a cause of action is duplicative where it "adds nothing to the complaint by way of fact or theory of recovery"].) ***Case Management Conference is continued to June 22, 2026 at 9 AM. Defendants shall give notice of all the above.
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6	Rashtchi vs. Madison Law, APC 2025-01482962	Motion to Be Relieved as Counsel of Record The motion by Anthony G. Graham, Graham & Associates LLP, to withdraw as counsel by plaintiff Azin F. Rashtchi, is CONTINUED to June 26, 2026 at 9 AM. First, proof of service of the moving papers is defective, as the sender's electronic service address is missing. (Code Civ. Proc., § 1013b, subd. (b)(1).) The client filed a response, which arguably waives the defective proof of service on the moving papers (Carlton v. Quint (2000) 77 Cal.App.4th 690, 698), but the same is not true of defendants and/or defense counsel. The Court also observes that the client's response (ROA 23) is untimely (Code Civ. Proc., § 1005, subd. (b)), and does not have any proof of service. Second, moving party failed to use all required forms, specifically the required declaration (form MC-052), or the required proposed order (form MC-053). (CRC 3.1362, subds. (c), (d), (e).) Moving party shall re-serve the notice of motion; and shall file and serve a completed declaration (form MC-052), a completed proposed order (form MC-053), a notice of continuance, and a compliant proof of service of all of the foregoing, by May 29, 2026. Moving Party shall give notice.
8	Moss vs. Holdo 2024-01371170	Motion to Be Relieved as Counsel of Record Attorney Kristine A. Thagard's motion to be relieved as counsel of record for defendant Meshel Sohl is GRANTED. This order shall

		become effective upon the filing of the proof of service of the signed order. Moving Party to give notice.
9	Pendley vs. Jamboree Housing Corporation 2025-01481445	Motion to Strike - Anti SLAPP Defendant C. Tyler Greer’s Special Motion to Strike Plaintiff John Pendley’s Second Amended Complaint is GRANTED. (Code Civ. Proc. §425.16.) An Order to Show Cause Re: Dismissal of Defendants Santa Ana Senior Associates, ConAm Management Corporation, Metro East Senior Park, Maria Chavez, and Christian Lopez pursuant to Code Civ. Proc. §581 is set for December 14, 2026 at 9 AM in this department. General Anti-SLAPP Framework Code Civ. Proc. §425.16 authorizes a special motion to strike claims arising from any act “in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue.” (Code Civ. Proc., § 425.16, subd. (b)(1); see id., § 425.16, subd. (e).) The anti-SLAPP statute “allows defendants to request early judicial screening of legal claims targeting free speech or petitioning activities” (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 880-881), and its provisions must be construed broadly (Code Civ. Proc., § 425.16, subd. (a)). The resolution of an anti-SLAPP motion involves two steps. First, the moving defendant must show that the challenged claim arises from constitutionally protected free speech or petition rights. (Baral v. Schnitt (2016) 1 Cal.5th 376, 381-382, 396.) If the defendant makes the requisite showing at the first stage, the burden then shifts to the plaintiff to demonstrate the claim’s merit

		by establishing a probability of success. (Id. at 396.) Step One – Protected Activity The defendant bears the initial burden to establish that the challenged claims arise from activity protected by Code of Civil Procedure section 425.16. (Baral, supra, 1 Cal.5th at p. 384.) To meet this burden, the defendant must “identify what acts each challenged claim rests on and ... show how those acts are protected under a statutorily defined category of protected activity.” (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.) “A ‘claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leaning to some different act for which liability is asserted.’ [Citation.] To determine whether a claim arises from protected activity, courts must ‘consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis of liability.’ [Citation.]” (Wilson, supra, 7 Cal.5th at p. 884; Bonni, supra, 11 Cal.5th at p. 1009.) The anti-SLAPP statute identifies four categories of protected activity. (See Code Civ. Proc., § 425.16, subd. (e)(1)-(4).) Here, Moving Party relies upon subds. (e)(1) and (2) which bring the following conduct within the scope of Section 425.16: “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law...” Here, the challenged cause of action is Malicious Prosecution. It is well established that a claim for malicious prosecution
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		implicates Section 425.16. Initiation and maintenance of a lawsuit is activity that is covered by Code Civ. Proc. §425.16. (See <i>Jarrow Formulas, Inc. v. LaMarche</i> (2003) 31 Cal.4th 728, 734-735 [“it is settled that a claim for malicious prosecution is subject to a special motion to strike under Cal. Civ. Proc. Code §425.16”].) Accordingly, Moving Party has satisfied his burden to show that the challenged causes of action arise from activity protected by the anti-SLAPP statute. Therefore, the analysis should proceed to the second prong. Step Two – Probability of Prevailing If the movant satisfies the first prong, the burden shifts to the responding party to establish a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) Although the moving party has the burden on Prong 1, the opposing plaintiff has the burden on Prong 2. (<i>Equilon Enterprises v. Consumer Cause, Inc.</i> (2002) 29 Cal.4th 53, 67; C.C.P. § 425.16(b)(1) [a COA “shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.”].) To establish a probability of prevailing under Code Civ. Proc. § 425.16, subd. (b)(1), the responding party must demonstrate that the challenged causes of action/pleading are both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by plaintiff is credited. (<i>Rusheen v. Cohen</i> (2006) 37 Cal.4th 1048, 1056.) The court considers the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based. (<i>Equilon</i>, supra., 29 Cal.4th at 67; C.C.P. § 425.16(b)(2).) Plaintiff must show there is admissible evidence which, if credited, would be sufficient to sustain a favorable judgment. (<i>McGarry v. University of San Diego</i> (2007) 154 Cal.App.4th 97, 108; <i>Evans v. Unkow</i> (1995) 38 Cal.App.4th 1490, 1497-98.) That is met if it is reasonably possible the evidence
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		in supporting affidavits, declarations or their equivalent will be admissible at trial. (Rutter CPBT §7:1020; Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 C5th 931, 947.) Only a claim that satisfies both prongs of the statute - i.e., that arises from protected speech or petitioning and lacks even minimal merit - can be stricken under the SLAPP statute. (Navellier, supra., 29 Cal.4th at 88-89; Jarrow Formulas, Inc., supra., 31 Cal.4th at 733.) Malicious prosecution is the initiation and maintenance of legal proceedings against a third person with malice and without probable cause. (Brennan v. Tremco Inc. (2001) 25 Cal.4th 310, 320.) The elements of a claim for malicious prosecution include (1) a prior action commenced by or at direction of defendant, (2) that lacked probable cause, (3) was initiated with malice, and (4) resulted in a termination of the action in plaintiff's favor. (Gruber v. Gruber (2020) 48 Cal.App.5th 529, 537.) Plaintiff has failed to meet his burden to establish that it has made a legally sufficient claim for malicious prosecution – he has failed to file a timely opposition altogether. Regardless, there is no probability of prevailing here, as there is no possibility Plaintiff could demonstrate that the prior unlawful detainer ended in a favorable termination. The case settled pursuant to a stipulation made on the record. A negotiated settlement cannot qualify as a favorable termination. (Ferreira v. Gray, Cary, Ware & Freidenrich (2001) 87 Cal.App.4th 409, 413 [“In order to maintain an action for malicious prosecution, the plaintiff must first demonstrate that there was a favorable termination of the underlying litigation. [citation] This requirement is an essential element of the tort of malicious prosecution, and it is strictly enforced. [citation] Where the underlying litigation ends by way of a negotiated settlement, there is no favorable termination for the purposes of pursuing a malicious prosecution action.”].)
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		Plaintiff surrendered possession of the premises in exchange for a promise that his adversaries would forego collection of costs it would have been entitled to had the matter proceeded to trial. There is no reasonable possibility this set of facts could support a cause of action for malicious prosecution. Accordingly, the motion is GRANTED. Moving Defendant shall provide notice.
10	Li vs. Chen 2024-01434921	Motion for Attorney Fees Under Ca. Civ. Code § 473(b), an award of attorney fees is mandatory where the court sets aside a default under the mandatory relief provision when specific conditions are met. The statute provides that “the court shall, whenever relief is granted based on an attorney’s affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” This fee-shifting provision is triggered automatically when the court grants mandatory relief from a default or default judgment based on the defaulting party’s attorney attesting to mistake, inadvertence, surprise, or neglect. <i>Jimenez v. Chavez</i> (2023) 97 Cal.App.5th 50. This provision serves to “relieve the innocent client of the burden of the attorney’s fault, to impose the burden on the erring attorney, and to avoid precipitating more litigation in the form of malpractice suits.” <i>Jackson v. Kaiser Foundation Hospitals, Inc.</i> (2019) 32 Cal.App.5th 166. To obtain mandatory attorney fees, the moving party must establish that the court granted relief based on the mandatory relief provision rather than discretionary relief. The mandatory relief provision applies only when an application for relief is made within six months after entry of judgment, is in proper form, and is accompanied by an attorney’s

		sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. Jimenez, supra. However, relief may be denied "when the court finds that the default was not in fact the attorney's fault, for example when the attorney is simply covering-up for the client." <i>Rodrigues v. Superior Court</i> (2005) 127 Cal.App.4th 1027. The compensatory legal fees and costs that must be paid are those reasonably incurred by the opposing party as a result of the default. In one case, the court determined that the appropriate fees included "attorney fees and costs incurred in obtaining default judgments and not total costs incurred in defending against motion to set aside defaults and responding to appeal." <i>Rogalski v. Nabers Cadillac</i> (1992) 11 Cal.App.4th 816. Here, the relief was not under the mandatory portion of the statute. This court did not rely on an attorney affidavit of fault when it set aside the default. Instead, it relied on the evidence whereby the Moving Party defendant testified that the old office manager never delivered him the envelope containing the summons and complaint. It was not until months later that a new office manager was hired and discovered the envelope, delivering it to defendant. Shortly thereafter, this motion was filed. In the underlying motion for relief from default, the court found defendant's reliance on his office manager was reasonable. (Citing to <i>Bae v. T.D. Services Co. of Arizona</i> (2016) 245 Cal.App.3d 1143.) Notwithstanding the above, the court still has discretion to award some fees here, although not the amount requested by plaintiff. Under section 473(c), whenever the court grants relief from a default, default judgment, or dismissal based on any provision of section 473—including both the mandatory and discretionary relief provisions—the court has discretionary authority to impose a penalty of up to \$1,000 upon an offending attorney or
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	party, direct that the offending attorney or party pay the opposing party's reasonable expenses including attorney fees, or direct payment to the State Bar Client Security Fund. These discretionary sanctions are separate from and in addition to the mandatory fee requirement that applies specifically when relief is granted based on an attorney's affidavit of fault. Section 473(c) states in part: (c)(1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following: (A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party. (B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund. (C) Grant other relief as is appropriate. (2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court. Code Civ. Proc., § 473(c). Here, the Court awards sanctions in the amount of \$1,000.00 per section 473(c)(1)(A). RULING: Plaintiff Xianglian Li's motion for attorney fees in connection with the withdrawal of the default of defendants Gary Chen, an individual; and California Orthopedic & Micro Surgery Institute, Inc. is GRANTED. The
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		court awards plaintiff total fees in the amount of one thousand dollars (\$1,000.00), payable within thirty (30) days. Plaintiff shall give notice.
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